

THIS AGREEMENT is made 12 September 2025

BETWEEN:

[REDACTED]

(" [REDACTED])

AND

THE UNIVERSITY OF AUCKLAND

a university constituted under the University of Auckland Act 1961 and a tertiary education provider under the Education and Training Act 2020, of 22 Princes Street, Auckland, New Zealand

("Service Provider")

RECITALS

- A. [REDACTED] carries on the business of a management consultant and international project manager. [REDACTED] is managed by [REDACTED] on behalf of the Customer.
- B. [REDACTED] engages the Service Provider to provide the Services and the Service Provider agrees to provide the Services on the terms of this Agreement.
- C. The Services provided under this Agreement will be delivered in the Partner Country, which is a jurisdiction outside of Australia. The Parties have agreed that Laws of the Partner Country that govern or impose Tax, work health and safety, and other obligations that affect the quality or safety of the Services, will apply. The Parties have also agreed that Laws of the Commonwealth of Australia will apply to give effect to and align with, Tetra Tech's obligations under its Head Contract with the Customer. Unless otherwise stated expressly, the terms of this Agreement are to be construed and interpreted in accordance with Australian Laws.

THE PARTIES AGREE as follows:

RECITALS

The recitals are true and form an operative part of this Agreement.

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- (g) information that is by its nature confidential, or information a party knows or reasonably ought to know is confidential or commercially sensitive;
 - (h) is marked by either Party as 'confidential', 'in confidence', 'restricted' or 'commercial in confidence'
 - (i) is provided by either Party or a third party 'in confidence';
 - (j) financial, accounting, marketing and technical information and plans, customer and supplier lists, fee rates, tender information, know-how, technology, operating procedures, price lists, data bases, source codes and methodologies, of which the Service Provider becomes aware of or generates (both before and after the day this Agreement is signed) in the course of, or in connection with, the Service Provider's engagement with any [REDACTED] Group Member (including confidential information belonging to any third party including the Customer); and
 - (k) all copies, notes and records based on or incorporating the information referred to in clause 1.8(a) to (f) but does not include any information that was public knowledge when this Agreement was signed or became so at a later date (other than as a result of a breach of confidentiality by, or involving, the Service Provider).
- 1.12. **Conflict of Interest** means a conflict of interest that arises because a Party or its Personnel's personal or business interests or obligations do or could conflict or be perceived to conflict with its obligations under this Agreement or a Work Order such that the party's or its Personnel's independence, objectivity or impartiality can be called into question. A conflict of interest may be:
- (a) actual: where the conflict currently exists;
 - (b) potential: where the conflict is about to happen or could happen; or
 - (c) perceived: where other people may reasonably think that a person is compromised.
- 1.13. **Contract Material** means all Material created or required to be developed or created as part of, or for the purpose of performing, the Services.
- 1.14. **Control** has the meaning given to that term by section 50AA of the *Corporations Act 2001* (Cth) and shall apply to an entity or entities including a company, body corporate or trust, and Controlled has a corresponding meaning.
- 1.15. **COVID-19 Event** means an event or disruption which has a material adverse effect on performance of the Services, that occurs as a direct result of the COVID -19 pandemic, provided that the material adverse effect is one a contractor could not have avoided or overcome by the taking of all reasonable steps (including expending additional costs).
- 1.16. **Crown** means the Sovereign in right of New Zealand and includes a Minister, and a government department and an Office of Parliament, but to avoid doubt does not include a Crown entity named or described in New Zealand's *Crown Entities Act 2004*, or a State enterprise named in Schedule 1 of New Zealand's *State-Owned Enterprises Act 1986*.
- 1.17. **Customer** means the entity or entities as described under schedule 2.
- 1.18. **Customer Policies** means the policies described under schedule 7.
- 1.19. **Criminal Code Act List** means the list of organisations that are specified as a "terrorist organisation" by the regulations made under the *Criminal Code Act 1995* (Cth) (this list is

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currently available [REDACTED]
[REDACTED])

- 1.20. **Cyber Security Incident** means a single or series of unwanted or unexpected identified occurrences of a system, service or network state indicating a potential or actual breach of cyber security procedures, process or requirements and threatening security.
- 1.21. **Data** includes any information provided by either party from any source, or collected or created by the Contractor in connection with the Services, whether in magnetic, electronic, hardcopy or any other form.
- 1.22. **Default Event** means those events listed in clause 19.2.
- 1.23. **Deliverables** means the reports and any data, material or other output required to be delivered as a consequence of supply of the Services.
- 1.24. **Direction or Direct** means any agreement, approval, assessment, authorisation, decision, determination, explanation, instruction, order, permission, rejection, request or requirement given or made by [REDACTED]
- 1.25. **Escalation Representative** means the person/s appointed by [REDACTED] and the Service Provider respectively to act as their representative for the purposes of resolving any dispute in accordance with clause 26(i)a)(c) including delegates as the context permits, being the persons specified in schedule 2 as at the date of this Agreement.
- 1.26. **Fraud** means, deliberate deceit by Personnel, undertaken in order to obtain a benefit for themselves and/or someone else. This includes such acts as theft, conspiracy, bribery, corruption, misappropriation, falsification of documents, non-authorised release of information, collusion and influencing decisions that will result in a personal benefit. **Fraudulent Practice** has a corresponding meaning.
- 1.27. **Governing Jurisdiction** is the jurisdiction listed in clause 23.
- 1.28. **Government Agency** means any government, semi-governmental, judicial, quasi-judicial or administrative entity, department, commission, tribunal, agency or authority of the Partner Country having jurisdiction over any part of, or in connection with the Services.
- 1.29. **GST** means the tax imposed by the GST Law.
- 1.30. **GST Law** has the meaning attributed in the *A New Tax System (Goods and Services Tax) Act 1999* (Cth).
- 1.31. **Head Contract** means the Head Contract as specified in schedule 2.
- 1.32. **Host** means the Government of the country in which the Services or the relevant Services are being provided (which, to avoid doubt, may include the Government of New Zealand), and includes any department, division, agency or office of such Government, and any entity controlled or directed by such Government.
- 1.33. **HSW Act** means New Zealand's *Health and Safety at Work Act 2015*
- 1.34. **Intellectual Property Rights** means all intellectual property rights, including:
- (a) patents, plant breeders' rights, copyright, rights in circuit layouts, registered designs, trademarks, know-how and any right to have Confidential Information kept confidential; and

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- (b) any application or right to apply for registration of any of the rights referred to in clause 14, but for the avoidance of doubt excludes moral rights and performers' rights.
- 1.35. **Key Personnel** means the Personnel of the Service Provider specified as "Key Personnel" in a Work Order.
- 1.36. **Laws includes:**
- (a) legislation, ordinances, regulations, by-laws, orders, awards, proclamations or other subordinate legislation;
 - (b) standards, codes and guidelines;
 - (c) principles of law or equity;
 - (d) directions or notices issued by any government authority; and
 - (e) requirements of a government authority to pay fees, taxes, levies, rates and charges in respect of those things referred to in paragraphs (a) to (d) above,
- for the jurisdiction of the Partner Country, as applicable or where context requires, as amended from time to time, and whether or not existing at Commencement Date.
- 1.37. **Legislative Requirements** means the relevant Laws of the Partner Country that applicable to the Services.
- 1.38. **Material** means any ideas, discoveries, inventions, information, data, compilations, records, designs, works, technology, software, methods, processes, formulas, names, logos or any other thing of any kind in which Intellectual Property Rights or other rights subsist.
- 1.39. **Modern Slavery** means any conduct which constitutes modern slavery, including:
- (a) trafficking in persons, as defined in article 3 of *the Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children*, supplementing the *United Nations Convention against Transnational Organized Crime* ([2005] ATS 27);
 - (b) child labour, as defined in article 3 of the *ILO Convention (No. 182) Concerning the Prohibition and Immediate Action for the Elimination of the Worst Forms of Child Labour*, done at Geneva on 17 June 1999 ([2007] ATS 38);
 - (c) slavery, human trafficking, servitude, forced labour and forced marriage or any other conduct which constitutes modern slavery under any Modern Slavery Law.
- 1.40. **Modern Slavery Laws** includes:
- (d) the *Modern Slavery Act 2018* (Cth) and Divisions 270 and 271 of the *Criminal Code 1995* (Cth);
 - (e) any other binding or non-binding guidelines issued by an entity or person so authorised under such laws and other laws, statutes, regulations and codes from time to time in force; and
 - (f) any other anti-Modern Slavery laws or regulations in force in Australia or otherwise applicable to [REDACTED] or the Service Provider under the Laws of the Partner Country in force from time to time with respect to reporting on or addressing the risks of Modern Slavery, including business operations and supply chains.

- 1.41. **Non-Compliant Services** means any Services that do not meet their Purpose (as set out in a Work Order), are defective or partly or wholly unperformed by the relevant date for performance under the applicable Work Order.
- 1.42. **Notice** means written notice and notify has a corresponding meaning.
- 1.43. **Partner Country** means the country/countries in which the Services are to be delivered as specified in the Agreement Details in schedule 2.
- 1.44. **Parties** means the Service Provider and [REDACTED] and Party means any one of them.
- 1.45. **Personnel** means:
- (a) the Service Provider and the Service Provider's employees, agents, the Service Provider's Representative and any other person employed or engaged by the Service Provider to perform any part of this Agreement;
 - (b) [REDACTED] officers, employees, agents, contractors and authorised representatives
- 1.46. **Pre-existing Intellectual Property Rights** means the Intellectual Property Rights which are owned by, or licensed or sublicensed to, a Party before the date (or if earlier, the effective date) of, and independently of, this Agreement or a Work Order issued under this Agreement.
- 1.47. **Pre-Existing Service Provider Material** means any Material made available by the Service Provider for use in the provision of the Services that existed prior to Commencement Date and was developed by the Service Provider independently from this Agreement.
- 1.48. **Prices** means:
- (a) where [REDACTED] has accepted a lump sum in a Work Order, the lump sum set out in the relevant Work Order, as adjusted under this agreement;
 - (b) where [REDACTED] has accepted rates in a Work Order, the sum ascertained by calculating the products of the rates and the corresponding quantities; or
 - (c) where [REDACTED] has accepted a lump sum and rates in a Work Order, the aggregate of the sums referred to in paragraphs 1.36(a) and 1.36(b).
- 1.49. **Proposal** means a proposal by a Service Provider under clauses 5.4 and 5.5 and in the form provided in schedule 3 that is intended to inform a future Work Order.
- 1.50. **Protective Security Incident** means a security incident that is:
- (a) a breach of protective security policy or procedures;
 - (b) an approach from anybody seeking unauthorised access to officials or official information; or
 - (c) any other event that harms, or may harm, the security of the [REDACTED] [REDACTED] the Customer and/or the [REDACTED] or the Customer's Confidential Information.
- 1.51. **Records** means all information and data relating to the management of this Agreement and Work Orders and provision of the Services. Records include reports, invoices, letters, emails,

notes of meetings, photographs and other media recordings. Records can be hard copies or soft copies stored electronically.

- 1.52. **Relevant List** means a list of terrorist organisations made under Division 102 of the *Criminal Code Act 1995* (Cth) and the charter of the United Nations Act 1945 (Cth).
- 1.53. **Representative** means either of the persons nominated as the Service Provider's Representative and [REDACTED] Representative from time to time including delegates as the context permits. Either Party may substitute and replace its Representative with reasonable written notice delivered to the other Party.
- 1.54. **Requirement** includes any requirement, notice, order, direction, recommendation, stipulation or similar notification received from or given by any Authority or under any Law, whether in writing or otherwise and regardless of to whom it is addressed or directed.
- 1.55. **Schedule of Prices** means the schedule of prices, rates and fees (if any) included at schedule 6.
- 1.56. **Sanctions List** means the list of individuals, entities or organisations designated or listed by the United Nations Security Council, its committees or the Australian Government for targeted financial sanctions or similar measures (this list is currently available at <https://www.dfat.gov.au/international-relations/security/sanctions/consolidated-list>).
- 1.57. **Scope of Services** means the scope of services that are covered by this Agreement as provided for in Schedule 1.
- 1.58. **Service Commencement Date** means the date, provided in a Work Order, on which the Service Provider must commence providing the Services.
- 1.59. **Service Provider** means the person, business or entity listed above that is contracted to perform the Services under this Agreement.
- 1.60. **Service Provider's Representative** means the person identified in schedule 2.
- 1.61. **Services** means the services described within any Work Order issued under this Agreement, including the performance of all other activities required to be supplied or undertaken by the Service Provider in order for the Service Provider to fulfill its obligations under this Agreement, within the Scope of Services.
- 1.62. **Services Tax** means, as the context requires:
- (a) the value added Tax or other Tax levied on consumption that, under a Taxation Law of the Partner Country, applies to the supply of the Services;
 - (b) the goods and services tax imposed by the GST Law.
- 1.63. **Site** has the meaning given to it in any relevant Work Order.
- 1.64. **Sovereign Nation** means a sovereign nation or an entity established by a sovereign nation.
- 1.65. **Special Conditions** means the special conditions referred to in a Work Order (if any).
- 1.66. **Specification** means any specifications for the Services under this Agreement.
- 1.67. **Subcontractor** means a person, business, company or organisation contracted by the Service Provider to deliver or perform part of the Service Provider's obligations under this Agreement or a Work Order and, where the context permits, also includes a reference to individuals engaged by the Subcontractor in relation to this Agreement or a Work Order, or

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the delivery of the Services including: the owner of the business, its directors, employees, agents, external consultants and co-opted or seconded staff.

- 1.68. **Tax** means and includes all forms of taxation and statutory, governmental, supra-governmental, state, principal, local government or municipal impositions, duties, contributions, excises, deductions, levies, charges and withholdings, including without limitation, withholding payments, corporate income tax, withholding tax of any nature, sales tax, stamp tax, custom duties and service charges, levies, social insurance premiums, employees payroll and directors tax and related deductions and withholdings, and all penalties, fines, charges, costs and interest relating thereto in all jurisdictions.
- 1.69. **Taxation Laws** means all applicable Laws of the Partner Country that mandates, requires or otherwise governs the application of a Tax.
- 1.70. **Term** means the term of this Agreement which commences on the Commencement Date and ends on the Completion Date.
- 1.71. [REDACTED] means [REDACTED]
[REDACTED]
- 1.72. [REDACTED] **Group Member** means any entity which Controls or is Controlled by, or is under common Control with, [REDACTED]
- 1.73. [REDACTED] **Representative** means the person specified in schedule 2.
- 1.74. **Third Party Material** means any material made available by the Service Provider for the purpose of the Agreement in which a third party holds Intellectual Property Rights.
- 1.75. **Time for Performance** means the time for performing the Services as stated in the relevant Work Order and as adjusted under this Agreement.
- 1.76. **Variation** means a change to the Services.
- 1.77. **WHS Legislation** means all applicable Laws and all applicable Requirements, including under Australian Laws (where applicable) and Laws in the jurisdiction of the Partner Country regulating matters of occupational health, safety or security.
- 1.78. **Withholding Payment** has the meaning given in Schedule 1 of the *Taxation Administration Act 1953* (Cth).
- 1.79. **Work Order** means an order given by [REDACTED] to the Service Provider to provide specified Services under clause 5.1 and in the format set out in Schedule 5 or such format that [REDACTED] determines.
- 1.80. **Work Order Requirements** means [REDACTED] requirements for the Services described in the relevant Work Order.
- 1.81. **Work Schedule** means a work schedule set out in the relevant Work Order, and as updated under this Agreement.

2. INTERPRETATION

2.1 In this Agreement (unless the context requires otherwise):

- (a) the singular includes the plural;

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- (b) the plural includes the singular;
- (c) a reference to one gender includes every other gender;
- (d) words referring to individuals include corporations, unincorporated associations, partnerships, trusts and joint ventures;
- (e) a reference to a Party includes that Party's administrators, successors and permitted assigns;
- (f) where the day on or by which something is to be done is not a Business Day, that thing may be done on or by the next Business Day;
- (g) a reference to a clause, subclause, schedule or attachment is a reference to a clause, subclause, schedule or attachment of this Agreement;
- (h) a reference to a clause number includes its subclauses;
- (i) the word "or" is not exclusive;
- (j) other parts of speech and grammatical forms of a word or phrase defined in this Agreement have a corresponding meaning;
- (k) a reference to any thing (including any right) includes any part of that thing, but performance of part of an obligation does not constitute performance of the entire obligation;
- (l) a reference to any legislation includes all delegated legislation made under it and any amendments, consolidations, replacements or re-enactments;
- (m) a reference to a document includes all amendments or supplements to, or replacements or novations of, that document;
- (n) a promise on the part of 2 or more persons binds them jointly and severally;
- (o) a reference to an asset includes property of any nature, a business, right, revenue and benefit;
- (p) headings are for convenience only and do not affect the interpretation of this Agreement;
- (q) a reference to a body, other than a party to this Agreement (including an institute, association or authority), whether statutory or not which ceases to exist or whose powers or functions are transferred to another body, is a reference to the body which replaces it or substantially succeeds to its powers or functions; and
- (r) specifying anything in this Agreement after the words 'includes', 'including' or 'for example' or similar expressions does not limit what else is included.

2.2 This Agreement between the Parties comprises these standard terms and conditions and all the documents comprised in, and incorporated by reference to, the schedules. If any of the documents comprising this Agreement are inconsistent, they take priority in the following order:

- (a) the Special Conditions (if any);
- (b) these standard terms and conditions (excluding schedule 2);
- (c) schedule 2,

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(d) a Work Order provided under clause 5,
provided that any provision which imposes a greater or higher requirement, standard, level of service or scope on the Service Provider will prevail.

3. TERM

- 3.1 This Agreement takes effect from the Commencement Date and expires upon the earlier of:
- (a) the Completion Date; or
 - (b) the date this Agreement is terminated in accordance with clause 19.2 or clause 20.
- 3.2 The Service Provider grants to [REDACTED] an option, by notice in writing, to extend the Completion Date of this Agreement for the Option Period specified in Schedule 2 (if any).
- 3.3 The Parties agree that, to the extent that any Services the subject of a Work Order have been performed by the Service Provider prior to the Commencement Date, the provisions of this Agreement and the requirements of the applicable Work Order will apply to those Services.
- 3.4 If a Work Order entered into prior to the expiration of the Term has a Work Order Completion Date that exceeds the expiration of the Term, the rights and obligations of the Parties in respect of that Work Order will continue to be governed by this Agreement until the earlier of:
- (a) the provision of the Services under the Work Order has been satisfactorily completed; and
 - (b) the Parties have discharged their obligations under this Agreement in relation to that Work Order (including payment),
- or
- (c) the Parties agree to terminate the Work Order in accordance with clauses 19.2 or 20.

4. PARTIES OBLIGATIONS

- 4.1 [REDACTED] acknowledges that the Service Provider is a tertiary institution and that in exercising any of its rights under this Agreement, it shall consider any adverse impacts on the academic freedom of the Service Provider as set out in section 267 of the *Education and Training Act 2020*
- 4.2 Both Parties agree to:
- (a) act in good faith and demonstrate honesty, integrity, openness, and accountability in their dealings with each other;
 - (b) discuss matters affecting this Agreement, Work Orders or the delivery of Services, whenever necessary; and
 - (c) notify each other promptly of any actual or anticipated issues that could:
 - (i) delay, significantly impact or change the Services;
 - (ii) impact the Prices;
 - (iii) be the subject of a request for official information under the official Information Act 1982 or a complaint to the New Zealand Ombudsman; or

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- (iv) receive significant media attention.

4.3 Within 10 Business Days of any issue being notified under clause 4.2, The Service Provider must:

- (a) advise [REDACTED] of the steps it plans to take to prevent or mitigate the impact of the issue on the provision of the Services, and the Service Provider must implement any such additional reasonable steps as the Buyer requests; and
- (b) where the notice is in respect of a matter in clauses 4.2(c)i or 4.2(c)(ii), provide the Buyer with details of the estimated impact of the issue on the cost of the Services, Charges, likely or estimated impact on the programme and completion date for the Services and make recommendations on how to proceed.

[REDACTED] Obligations

4.4 [REDACTED] must:

- (a) provide the Service Provider with any information which the Service Provider has reasonably requested to enable the delivery of the Services, provided that the requested information is readily available to [REDACTED] and of a kind which the [REDACTED] considers can, and should, be made available for that purpose;
- (b) make decisions and consider approvals of a kind reasonably able to be provided by [REDACTED] and as required by the Service Provider to assist delivery of the Services in accordance with this Agreement and Work Orders; and
- (c) pay the Service Provider the Prices specified in a Work Order as long as the Service Provider has delivered the Services in accordance with the requirements of a Work order and this Agreement and otherwise performed its obligations to the [REDACTED] [REDACTED] sole satisfaction and invoiced [REDACTED] [REDACTED] all in accordance with this Agreement.

4.5 [REDACTED] acknowledges that the Service Provider is a tertiary institution and that in exercising any of its rights under this Agreement, it shall consider any adverse impacts on the academic freedom of the Service Provider as set out in section 267 of the Education and Training Act 2020.

Service Provider's Obligations

4.6 The Service Provider must provide the Services to [REDACTED] satisfaction:

- (a) on time (including achieving any milestones, deliverables or other time requirements specified in a Work Order);
- (b) with due care, skill and diligence, to the appropriate professional standard and in accordance with good industry practice as would be expected from a professional providing services similar to the Services for a project of a similar type and size to the Services in the relevant industry;
- (c) without limiting paragraph (b) above, to achieve, meet or surpass, and in accordance with, any quality, performance or similar standards and/or criteria set out in a Work Order or reasonably notified by [REDACTED] to the Service Provider from time to time; and
- (d) for the Price specified in a Work Order.

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4.7 The Service Provider must:

- (a) ensure that its Personnel have the necessary qualifications, skills, experience, training and resources to successfully provide the Services;
- (b) ensure that its Personnel and Subcontractors obtain (and continue to hold) all necessary visas;
- (c) provide all equipment and resources necessary to provide the Services;
- (d) bear and pay as and when due all costs and expenses suffered or incurred by the Service Provider in connection with the provision of the Services (including costs and expenses of and in connection with Subcontractors); and
- (e) comply with all applicable laws, regulations and other obligations in connection with the performance and implementation of this Agreement and/or the provision of Services.

4.8 The Service Provider warrants and represents that:

- (a) the Service will be provided in full, with due care and skill;
- (b) the Service will be provided to a professional standard and in a timely manner;
- (c) the Service will be provided in the most cost-effective manner and using suitable materials;
- (d) the Service will be complete and in accordance with the description in this Agreement;
- (e) the Service will be performed by the Service Provider and/or its Personnel;
- (f) the Service will be performed to the Specification (if any);
- (g) it has made its own assessment of all information made available to the Service Provider in respect of the Services and sought all appropriate professional advice;
- (h) all third-party liabilities will be the sole responsibility of the Service Provider and [REDACTED] will not incur any liability for these;
- (i) all written representations and statements made by the Service Provider provided to the [REDACTED] (including in any proposal) regarding the Service Provider's or its Personnel's qualifications, skills, experience, training, resources and expertise and the functions, quality and performance were when given and remain true and correct in all material respects, do not omit any material matter, and were not and are not likely to mislead or deceive [REDACTED] as to any material matter;
- (j) it has and will maintain all the regulatory licences, permits and other authorisations necessary to perform the Services and carry out all other activities as contemplated by this Agreement;
- (k) reports produced by the Service Provider and by the Service Provider's Subcontractors are factually correct, accurate and truthful in every material respect, do not contain false information and are not ambiguous or misleading;
- (l) in so far as a report of a kind referred to in paragraph (c) above relies upon or uses information or documentation provided by [REDACTED] or (at the [REDACTED] written request or with the [REDACTED] written consent) a third party (other than a Subcontractor)) having made due enquiry, the Service Provider is not aware of any material incorrect fact, inaccuracy, untruth, false information, ambiguity or misleading information in the provided information;
- (m) the Services provided comply with all applicable laws, regulations and codes of conduct,

and each such warranty will be deemed repeated continuously by the Service Provider during the term of this Agreement.

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Service Provider's Additional Obligations

- 4.9 The Service Provider acknowledges that the Services are being paid for by public funds from the New Zealand Government and undertakes to assist [REDACTED] by ensuring that transparent, efficient and effective financial and operational processes are used to provide the Services and manage the Agreement and any Work Orders.
- 4.10 The Service Provider must not at any time do anything that is likely to adversely affect the reputation, good standing or goodwill of the Customer or the International Development Cooperation programme.
- 4.11 The Service Provider must comply with the *Supplier Code of Conduct* issued by the Procurement Functional Leader (see [REDACTED] and any other relevant codes of conduct cited in this Agreement, a schedule to this Agreement or a Work Order.
- 4.12 The Technical Adviser Code of Conduct (Code of Conduct) applies to all Services undertaken by the Service Provider, its Personnel and Subcontractors to the extent that the provisions of the Code of Conduct are applicable to the Services. A copy of the Code of Conduct is available on [REDACTED]
[REDACTED]
[REDACTED] The Service Provider must comply with the Code of Conduct. The Service Provider must provide a copy of the Code of Conduct to all relevant Personnel and Subcontractors, and advise of their obligation to adhere to it.
- 4.13 For the avoidance of doubt, the Service Provider, its Personnel and Subcontractors have no diplomatic immunity under this Agreement during the provision of the Services, and are fully responsible for the consequences of their own actions.

Personal and Cultural Considerations

- 4.14 If the nature of the Services requires it, the Service Provider must provide the Services in a manner that:
- (a) is culturally appropriate for the countries and communities where the Services are provided;
 - (b) respects the personal privacy and dignity of all individuals and stakeholders;
 - (c) complies with all child protection laws (including New Zealand's *Vulnerable Children Act 2014*) and any child protection, welfare, safeguarding or other similar policies as notified to the Service Provider by [REDACTED] (which may include undertaking safety checks and/or providing information to [REDACTED] [REDACTED] to enable it to undertake or verify safety checks); and
 - (d) ensures that any materials, goods and services are not sourced from a workplace which practices or includes slavery, serfdom, forced or compulsory labour, child labour or human trafficking

Team Obligations

- 4.15 If the Service Provider (or its Personnel) is described as a team member in a Work Order, the Service Provider undertakes to join a team created by [REDACTED] or the Customer (as the case may be), and in doing so agrees to:
- (a) work in a cooperative and participatory way with all other team members;

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- (b) undertake, be responsible and accountable for such work as is agreed with the team leader nominated by the [REDACTED] and
- (c) take direction from, and respect the position of, the nominated team leader.

The Service Provider acknowledges that the team leader will be the individual nominated by [REDACTED] to take overall control and responsibility for the direction and management of the delivery of the activities the subject of the Services (or components thereof).

- 4.16 If the Service Provider (or its Personnel) is described as the team leader in a Work Order the Service Provider undertakes to join a team created by [REDACTED] and agrees, in so far as the Services include leading the team but without affecting the other Services, to:

- (a) undertake the role of team leader and take overall control and responsibility for the direction and management of the delivery of the team's work
- (b) work in a cooperative and participatory way with all team members; and
- (c) be responsible for monitoring the other team members' contributions to the team's work, advising [REDACTED] of significant problems with the team's progress and any risk that the team's work will be delayed or not completed

5. WORK ORDERS

Issue of Work Order

- 5.1 From time to time during the term of this Agreement, [REDACTED] may issue a Work Order in the form provided in schedule 5 (Form of Work Orders) with reference to the Schedule of Prices in accordance with clause 12.

Work Order Requirements

- 5.2 Each Work Order issued under clause 5.1 must specify the particular Services to be provided. Unless otherwise agreed by [REDACTED] the payment for Services to be provided under a Work Order will be calculated in accordance with the Schedule of Prices, provided in schedule 6. The Work Order may include other terms specifically agreed between the parties to apply to the specific Services required under the relevant Work Order. The Service Provider must comply with the Work Order Requirements.

No obligation to issue

- 5.3 [REDACTED] has no obligation to issue any Work Order to the Service Provider and the Service Provider has no right to make any claim for loss of profit or contract or any other losses resulting from any failure by [REDACTED] to issue any Work Order. This includes where a request for a Proposal is issued under clause 5.4.

Service Provider's Proposal

- 5.4 [REDACTED] may at any time during the Term, request the Service Provider to provide a Proposal for Services. The Service Provider may submit a Proposal for the requested Services in the format set out in schedule 3. If the Proposal is accepted by [REDACTED] it will form the basis of a Work Order. If so requested,

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the Service Provider must provide the Proposal within 10 Business Days of receiving the request (or such longer period as agreed by [REDACTED] acting reasonably).

5.5 A Proposal must include:

- (a) the Service Provider's detailed description of the proposed Services to be provided;
- (b) all relevant details of the manner in which the Service Provider proposes to perform the relevant Services, including Work Schedule;
- (c) the Service Provider's proposed price and payment schedule (including a breakdown calculated by reference to reasonable market rates for reference);
- (d) the Service Provider's proposed Time for Performance for the proposed Services;
- (e) the Service Provider's proposed hourly rates for any required Variations;
- (f) be submitted in the format set out in schedule 3, or such other format that [REDACTED] agrees; and
- (g) any other reasonable information requested by the [REDACTED]

5.6 A request for a Proposal under clause 5.4 does not bind [REDACTED] to accept an issued Proposal and an issued Proposal imposes no obligation on [REDACTED]

5.7 [REDACTED] may issue a Work Order in accordance with clause 5.1 and containing terms substantially similar to those in the Proposal.

6. SERVICES

Provision of Services

6.1 The Service Provider must provide the Services described in any Work Order issued under this Agreement in accordance with the terms and conditions of this Agreement, the applicable requirements of the Proposal and the requirements of the Work Order.

6.2 [REDACTED] may inspect the performance and outcome of the Services at any time.

6.3 Unless this Agreement states otherwise, the Services may be provided by the Service Provider either personally or through the employment/subcontracting of other persons.

6.4 In providing the Services the Service Provider must:

- (a) complete the Services in accordance with the description in the relevant Work Order under this Agreement.
- (b) comply with any reasonable Direction given by or on behalf of [REDACTED] from time to time;
- (c) comply with all policies, procedures and directives of [REDACTED] so far as they are made known to the Service Provider;
- (d) comply with all applicable standards, Laws and regulations;
- (e) take all reasonable practical measures to ensure the Service Provider's own safety and the safety of the Service Provider's Personnel;

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- (f) provide and use appropriate safety equipment and clothing and require employees of the Service Provider to use that equipment;
- (g) provide all labour, materials, plant, utilities and equipment necessary to perform the Service Provider's obligations under the Agreement;
- (h) provide [REDACTED] on request with written evidence of the Service Provider having:
 - (i) current insurance policies that meet the requirements set out in clause 17;
 - (ii) worker's compensation insurance or insurance to a similar effect, where the Service Provider engages Personnel to deliver the Services and is authorised by this Agreement or [REDACTED] to do so;
 - (iii) required registrations for taxation and such other licences, registration or permits that may be required under the applicable laws of the jurisdiction from where the Service Provider usually conducts its business and where applicable, the jurisdiction where the Services are to be delivered.

Personnel and Performance

- 6.5 Where any Key Personnel have been specified in a Work Order, the Service Provider must use those Key Personnel to provide the Services.
- 6.6 The Service Provider must obtain the [REDACTED] prior written approval if the Service Provider wishes to change any Key Personnel and ensure that the replacement has the same or materially similar skills, qualifications, expertise and experience as the Key Personnel to be replaced. Any such replacement must be done at the previously agreed Price rate for that position. Where [REDACTED] agrees to a replacement person with lower qualifications and/or lesser skills, expertise or experience there will be a reduction in the Price rate.
- 6.7 If, in [REDACTED] sole opinion, any Personnel of the Service Provider (including Key Personnel) is:
- (a) not materially performing in accordance with the terms of this Agreement or the any applicable Work Order, [REDACTED] may, by Notice to the Service Provider, require the Service Provider to procure that the Personnel perform the relevant obligations within 10 Business Days, failing which the [REDACTED] may, by Notice to the Service Provider, require the Service Provider to remove that Personnel; or
 - (b) a material threat to the health, safety or security of the Personnel or property of the [REDACTED] or the Customer, or has breached security or confidentiality requirements under this Agreement, [REDACTED] may, by Notice to the Service Provider, require the Service Provider to remove that Personnel, and the Service Provider must immediately remove that Personnel.
- 6.8 Without limiting any other provision of this Agreement, in its absolute discretion and for any reason [REDACTED] may, by Notice to the Service Provider, require the Service Provider to remove any Personnel and/or ensure a Subcontractor removes any member of its personnel (in any such case) from a country, region, locality or Site, and the Service Provider must comply with such a Notice as quickly as is possible

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- 6.9 The Service Provider is solely responsible for the acts and omissions of its Personnel. Acceptance by [REDACTED] of the Service Provider's Personnel (including key Personnel) or any replacement does not relieve the Service Provider from any obligation under this Agreement or a Work Order.
- Subcontracting**
- 6.10 The Service Provider may only subcontract the performance of any of its obligations under this Agreement or a Work Order:
- (a) to Approved Subcontractors; and
 - (b) to other Subcontractors if the other Subcontractor is approved in accordance with clauses 6.12.
- 6.11 Where any Subcontractor(s) have been identified in a Work Order or if a Subcontractor has been approved as an Approved Subcontractor, the Service Provider must use those Approved Subcontractor(s) in delivering the Services.
- 6.12 The Service Provider must obtain [REDACTED] prior written approval if it wishes to:
- (a) use a new Subcontractor to perform any of the Service Provider's obligations under this Agreement or a Work Order; or
 - (b) change any Approved Subcontractor.
- 6.13 If the Service Provider wishes to, or does, change any Approved Subcontractor the Service Provider must ensure that the replacement has the same or materially similar skills, qualifications, expertise and experience as the Approved Subcontractor to be replaced.
- 6.14 The Service Provider must use good procurement practice in purchasing goods (including any Assets) or subcontracting services under this Agreement or a Work Order. Good procurement practice means acting with integrity, being open, fair and accountable and achieving value for money. Without limiting the previous sentences, if, and whenever, [REDACTED] requires the Service Provider to conduct or manage a procurement on the [REDACTED] behalf (or the Service Provider procures goods and/or services in connection with the Services to substantially the same effect) then, in respect of such a procurement, the Service Provider must comply with all relevant principles and provisions of the New Zealand Government Procurement Rules then in force just as the Service Provider were itself bound or required to comply with those rules.
- 6.15 The Service Provider is responsible for selecting each Subcontractor (whether or not an Approved Subcontractor) and must ensure that each Subcontractor is creditworthy, qualified and has the necessary qualifications, skills, expertise or experience and skills to carry out the work related to that aspect of the Services being subcontracted.
- 6.16 If the Service Provider subcontracts any of its obligations under this Agreement or a Work Order, the Service Provider is, and continues to be, fully responsible for:
- (a) providing the Services; and
 - (b) the acts and omission of its Subcontractors as if they were the acts and omissions of the Service Provider
- 6.17 The Service Provider must ensure that each Subcontractor is fully aware of the Service Provider's obligations under this Agreement and applicable Work Orders and each

Subcontract contains obligations on the Subcontractor that are consistent with the relevant terms of this Agreement, including in relation to clauses 4 (The Parties' obligations), 14 (Intellectual Property), 15 (Assets), 19 (Termination), 20 (Termination for Convenience), 21 (Handing Over), 22 (Confidentiality), 28 (Conflicts of Interest), 29 (Child Protection), 30 (PSEAH), 31 (Counter Terrorism), 32 (Modern Slavery), 33 (Fraud and Anti-Corruption), 34 (Work Health and Safety), 35 (Security and Cyber Security), 36 (Information Management), 37 (Publicity), 38 (Novation and Assignment), 39 (Performance Assessment), 40 (Compliance), 41 (Notification) and any performance standards set out in an applicable Work Order.

6.18 If, in [REDACTED] sole opinion, a Subcontractor is:

- (a) materially not performing in accordance with the terms of this Agreement or a Work Order, [REDACTED] may, by Notice to the Service Provider, require the Service Provider to procure that the Subcontractor performs the relevant obligations within 10 Business Days, failing which the [REDACTED] may, by notice to the Service Provider, require the Service Provider to remove that Subcontractor; or
- (b) a material threat to the health, safety or security of the Personnel or property of [REDACTED] or the Customer, or has breached security or confidentiality requirements under this Agreement, [REDACTED] may, by notice to the Service Provider, require the Service Provider to remove that Subcontractor, and the Service Provider must immediately remove that Subcontractor.

6.19 Without limiting any other provision of this Agreement or a Work Order, in its absolute discretion and for any reason [REDACTED] may, by Notice to the Service Provider, require the Service Provider to remove any Subcontractor from a country, region, locality or Site, and the Service Provider must comply with such a Notice as quickly as is possible

Service Provider non-performance

6.20 If the Services do not meet their Purpose (as set out in a Work Order) or are not in accordance with this Agreement, [REDACTED] may by notice require the Service Provider to redo the Services at no additional cost to [REDACTED]

6.21 Where the Service Provider fails to:

- (a) remedy a defect in performance of the Services; or
- (b) redo the Services within the time specified in a notice given by [REDACTED] under clause 6.20,

[REDACTED] may, in its discretion, arrange for the performance of the necessary work at the Service Provider's sole risk and expense and recover the cost and expenses from the Service Provider as a debt due and payable.

6.22 Any act, omission or conduct by [REDACTED] does not and will not be deemed to:

- (a) prejudice [REDACTED] right of termination under clauses 19 or 20 or

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- (b) constitute a waiver or an election by [REDACTED] to terminate this Agreement.

Suspension of Services

- 6.23 [REDACTED] may, with reasonable notice, Direct the Service Provider to suspend any of the Services for such time as [REDACTED] thinks fit, in which case the Service Provider must comply with that Direction.
- 6.24 Any cost incurred by the Service Provider by reason of a suspension under this Agreement must be borne by the Service Provider unless the suspension is needed due to an act or omission by [REDACTED] its employees, consultants or agents, or is solely for [REDACTED] convenience, in which case [REDACTED] must pay the Service Provider any extra costs reasonably and necessarily incurred by the Service Provider as a result of the suspension, as reasonably determined by [REDACTED]
- 6.25 If [REDACTED] gives a Notice or Direction that it lifts the suspension, the Service Provider must again provide the Services from the time and date specified in the Notice or Direction, in accordance with, the terms and conditions of this Agreement and the applicable Work Order as if no suspension had occurred.
- 6.26 [REDACTED] will not be liable for, or in connection with, (and the Service Provider may not make) any loss, claim or demand in connection with any suspension except under clause 6.6.

Delay

- 6.27 The Service Provider must promptly notify [REDACTED] of any actual or anticipated issues that could:
- (a) delay, significantly impact or change any Services;
 - (b) impact any Prices;
 - (c) be the subject of a request for official information under the *Official Information Act 1982* of a complaint to the New Zealand Ombudsman; or
 - (d) receive significant media attention.
- 6.28 Within 10 Business Days of any issue being notified under clause 6.29, the Service Provider must:
- (a) advise [REDACTED] of the steps it plans to take to prevent or mitigate the impact of the issue on the provision of the Services, and the Service Provider must implement any such additional reasonable steps as the [REDACTED] requests
 - (b) where the notice is in respect of a matter in clauses 6.29(a) or (b), provide the Service Provider with details of the estimated impact of the issue on the cost of the Services, Prices, likely or estimated impact on the programme and completion date for the Services and make recommendations on how to proceed.
- 6.29 Unless otherwise agreed by [REDACTED] in writing, clauses 6.29 and 6.30 do not:

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- (a) relieve the Service Provider of any obligations to deliver the Services the subject of a Work Order in accordance with the timeframes, specifications or any other obligations in a Work Order or this Agreement; or
- (b) create any obligation or expectation that [REDACTED] will adjust any Prices.

7. VARIATIONS

- 7.1 [REDACTED] may at any time direct the Service Provider to perform a Variation. All such Directions must be in writing and specify that they direct a Variation.
- 7.2 The Service Provider must not carry out a Variation unless directed to do so by [REDACTED] in writing.
- 7.3 Where the Service Provider proposes a Variation for its own convenience, it must provide all information reasonably required by [REDACTED]. The Service Provider acknowledges that [REDACTED] may approve or reject the proposed Variation at its sole discretion and is not required to have regard to the interests of the Service Provider when making its decision.
- 7.4 If the Service Provider considers any Direction requires a Variation but the Direction is not in writing or does not specify that it directs a Variation, the Service Provider must promptly notify [REDACTED] in writing setting out why the Service Provider considers the Direction requires a Variation. In that case the Service Provider must not comply with the Direction unless the Service Provider receives a written:
 - (a) Direction specifying a Variation; or
 - (b) notice [REDACTED] disagrees, stating its reasons.
- 7.5 If a notice is issued under clause 7.4(b), the Service Provider must comply with the Direction but may, within 20 Business Days, dispute [REDACTED] notice under clause 7.4(b) by giving notice under clause 26.
- 7.6 The Service Provider acknowledges that [REDACTED] is not liable for or in connection with (and the Service Provider may not make) any claim relating to any Variation except where such Variation is pursuant to a Direction in accordance with clause 7.1.
- 7.7 The Prices may be adjusted for each Variation. Unless the amount of the adjustment is agreed, the adjustment may be calculated by [REDACTED] on the basis of applicable rates or fees in this Agreement or, if none, then reasonable rates or fees.
- 7.8 The Service Provider agrees that no Variation will invalidate this Agreement.

8. DELIVERABLES

- 8.1 If the Service Provider is to provide Deliverables then the details of the Deliverables (if any) set out in a Work Order, including the delivery dates and the form and content requirements, must be complied with by the Service Provider.

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- 8.2 Title in the Deliverables will vest in [REDACTED] on their delivery to [REDACTED] and on receipt by the Service Provider of payment for the Deliverable.

9 SERVICE PROVIDER'S RELATIONSHIP AND CONDUCT

- 9.1 The Service Provider must:

- (a) conduct itself in a manner that does not invite, directly or indirectly, [REDACTED] officers, employees or agents to behave unethically, to prefer private interests over [REDACTED] interests or to otherwise contravene the [REDACTED] Code of Conduct and Client Service Standards as stated in schedule 4 or any Code of Ethics for the Australian Government;
- (b) act in a manner consistent with the policies, guidelines and other requirements set out in clauses 28 to 34 to the extent relevant to the Services or performance of the Service Provider's obligations under this Agreement; and
- (c) ensure that its Personnel (if any) observe and comply with the provisions of this Agreement.

- 9.2 Nothing in this Agreement (including this clause 9) constitutes a relationship of employer and employee, principal and agent, or partnership between [REDACTED] and the Service Provider.

- 9.3 The Service Provider acknowledges that this Agreement (including this clause 9) does not give the Service Provider or the Service Provider's employees authority to bind [REDACTED]

- 9.4 The Service Provider must not and must ensure that the Service Provider's employees do not, directly or indirectly assume or create or attempt to assume or create any obligation on behalf of or in the name of [REDACTED]

10 NO MINIMUM PURCHASE

[REDACTED] is under no obligation to provide a minimum quantity of Work Orders or to procure a minimum quantity of Services from the Service Provider during the Term.

11 NON-EXCLUSIVITY

No provision of this contract will be deemed to create an exclusive agreement between the parties and [REDACTED] will always be entitled to invite tenders from and contract with any other party it deems fit, for the provision of like services.

12 PRICE

- 12.1 In consideration for the supply of the Services under this Agreement, [REDACTED] will pay the Prices in accordance with a Payment Plan under the Work Order. The Parties may agree a Schedule of Prices in the form provided in Schedule 6 unless otherwise modified in a Work Order.

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- 12.2 The Prices include all taxes, duties or government charges imposed or levied in Australia or overseas in connection with this Agreement.
- 12.3 The Prices include all costs of compliance with the Service Provider's obligations under this Agreement. No other costs or expenses are payable by [REDACTED]

13 TERMS OF PAYMENT

Invoices

- 13.1 The Service Provider must submit correctly rendered invoices when due pursuant to this clause and any Work Order for the Services for which the invoice seeks payment.
- 13.2 An invoice will be correctly rendered if:
- (a) it complies with the requirements of this Agreement; and
 - (b) if appropriate and required by [REDACTED] it is accompanied by documentation substantiating the amount claimed.
- 13.3 All invoices must include a certification by a duly authorised representative:
- (c) that the invoice has been correctly calculated;
 - (d) that the Services included in it have been performed in accordance with this Agreement.
- 13.4 All invoices must be submitted to:
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- 13.5 Unless this Agreement states otherwise, [REDACTED] will pay for the Services within 30 days after:
- (a) completion of the Services; or
 - (b) receipt of a correctly rendered invoice for the Services,
- whichever occurs later.
- 13.6 [REDACTED] has no obligation to pay for Non-Compliant Services.
- 13.7 A payment by [REDACTED] to the Service Provider is not an admission of liability and does not affect any rights or remedies that [REDACTED] may have under relevant Laws.
- 13.8 If [REDACTED] makes a payment for Non-Compliant Services or pays an amount greater than the amount payable under this Agreement, the payment is deemed an overpayment and recoverable from the Service Provider.

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- 13.9 Any overpayment may be offset against any amount subsequently due to the Service Provider or may be recovered in Court as a debt due and payable to [REDACTED]
- 13.10 The Service Provider agrees that any amount paid by [REDACTED] under this Agreement can be taken to offset against any claims of underpayment at a later date.
- 13.11 [REDACTED] need not pay an amount that is disputed in good faith by [REDACTED] until the dispute is resolved.

14 INTELLECTUAL PROPERTY RIGHTS

- 14.1 This clause 14 does not affect the ownership of the Intellectual Property Rights in any Pre-Existing Service Provider Material or Third-Party Material.
- 14.2 The Service Provider must obtain all necessary copyright and other Intellectual Property Rights permissions before using or incorporating any Pre-Existing Service Provider Material or Third-Party Material available in the Services.
- 14.3 All Intellectual Property Rights in the Contract Material vest in [REDACTED] on creation.
- 14.4 To the extent that:
- (a) [REDACTED] needs to use any of the Pre-Existing Service Provider Material or Third-Party Material to receive the full benefit of the Services, the Service Provider grants to, or must obtain for [REDACTED] a perpetual, irrevocable, world-wide, royalty free, non-exclusive licence that includes the right to sublicense, use, reproduce, adapt, modify and communicate that Pre-Existing Service Provider Material or Third-Party Material;
 - (b) the Service Provider needs to use any of the Contract Material, [REDACTED] grants to the Service Provider, subject to any conditions or restrictions specified by [REDACTED] a world-wide, royalty-free, non-exclusive, non-transferable licence that includes the right to sublicense, use, reproduce, adapt, modify, distribute and communicate such Contract Material solely for the purpose of providing the Services.
- 14.5 The licence granted to the Service Provider under clause 14.4(b) does not include a right to exploit the Contract Material for commercial purposes.
- 14.6 [REDACTED] acknowledges that the Service Provider warrants that within its knowledge and belief (without having undertaken freedom to operate searches) the use of Contract Material in the manner permitted under this Agreement will not infringe the rights (including Intellectual Property Rights) of any person.
- 14.7 The Service Provider indemnifies [REDACTED] its officers, employees and agents against all loss, damage or expense arising in respect of any action or claim for alleged infringement of any patent, copyright, registered design, trade mark or any other Intellectual Property Rights, by reason of [REDACTED] receipt or enjoyment of the Services. To avoid doubt, indemnity in this clause 14.7 is limited to all loss, damage or expenses related to any infringement to Intellectual Property Rights within the knowledge of the Service Provider.

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Traditional Knowledge

- 14.8 If, and whenever, the Deliverables or any other product of the Services include/s traditional knowledge and/or traditional cultural expressions:
- (a) without limiting clauses 4.5 and 4.6(e), the Service Provider must ensure that it is aware of, and complies with, all relative legal requirements; and
 - (b) whether or not the traditional knowledge and/or traditional cultural expressions or the presentation or expression thereof is or includes Intellectual Property Rights or Pre-existing Intellectual Property Rights, the Service Provider must obtain and have the fully-informed consent of all those persons and bodies who or which are entitled to give such consent to the inclusion, presentation and use of the traditional knowledge and/or traditional cultural expressions in and as a Deliverable under, and upon the terms and conditions of, this Agreement

15 ASSETS

Ownership and disposal

- 15.1 Pre-existing Assets remain the property of their current owner.
- 15.2 [REDACTED] will not own any Assets purchased as an expense under this Agreement or a Work Order.
- 15.3 At the end of this Agreement, at the option of the [REDACTED] the Assets will either be gifted and transferred to the relevant partner organisation (or any Buyer Nominee) or, if directed by the [REDACTED] sold, with the proceeds returned to [REDACTED]
- 15.4 The Service Provider acknowledges that [REDACTED] has no responsibility for:
- (a) the condition of the Assets at the time of gifting and transfer or sale; and
 - (b) costs that may be associated with the gifting and transfer or sale of the Assets (such as any tax costs or gift duty)

Register of Assets

- 15.5 The Service Provider will create and maintain an Asset Register for all Assets. The Asset Register will be updated on a regular basis and, where appropriate, will include financial information relating to the depreciation in financial value of applicable Assets.

Insurance and Maintenance

- 15.6 The Service Provider will ensure there is sufficient insurance against loss or damage, for all Assets until the Assets are disposed of in accordance with clause 15.3.
- 15.7 The Service Provider will undertake all necessary or appropriate maintenance of Assets to ensure all Assets are available for use during the term of the Agreement.

16 INDEMNITY

- 16.1 For the purposes of this clause 16, the following definitions apply:
- (a) **Indemnified Events** is defined in clauses 16.2(a) – (e);

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- (b) **Indemnified Persons** means [REDACTED] and its Personnel; and
- (c) **Claims** means, subject to any exclusion or limitations set out in this clause 16, all costs, losses, damages, expenses (including legal expenses), penalties, fines and liabilities of any kind.
- 16.2 Subject to clauses 16.3 and 16.4, the Service Provider indemnifies the Indemnified Persons, from and against all Claims which may be asserted against or suffered by any of the Indemnified Persons and which relate to, result from or arise in connection with:
- (a) any negligence, wrongful act or omission, wilful default, wilful neglect, Fraud or breach of duty by the Service Provider or any of its Personnel;
 - (b) any breach of a warranty given by the Service Provider under clause 4.7 of this Agreement;
 - (c) any Default Event or breach by the Service Provider of any of the provisions of this Agreement;
 - (d) loss of, or damage to, any real or personal property owned, leased licensed or controlled by [REDACTED] or any real or personal property of any third party, arising out of or in connection with the performance of the Services or any activity for which the Service Provider is directly responsible; or
 - (e) personal injury (which includes illness) or death of any person arising out of or in connection with the performance of the Services or any activity for which the Service provider is directly or indirectly responsible,
- (together, **Indemnified Events**).
- 16.3 For the avoidance of doubt, the indemnity in clause 16.2 covers any Claim by a third party which relate to, result from, or arise in connection with, Indemnified Events including where such Claim is based on facts which, if substantiated, would constitute or prove the occurrence of the Indemnified Event.
- 16.4 The Service Provider's liability to indemnify [REDACTED] under this clause 18 will be reduced proportionately to the extent that [REDACTED] [REDACTED] negligent acts or omissions contributed to the relevant loss or liability indemnified.
- 16.5 The Contractor's liability under a Work Order will be limited to an amount specified as the Liability Cap at Item 19 of the Work Order.
- 16.6 The limitation in clause 16.5 does not apply to:
- (a) personal injury (including sickness and death);
 - (b) loss of, or damage to, tangible property;
 - (c) breach of any obligations or duties in relation to privacy, fraud, misconduct, conflicts of interest, child abuse, modern slavery, harassment, or sexual assault;
 - (d) breach of confidence;
 - (e) breach of Intellectual Property rights; or
 - (f) breach of any law, regulation or ordinance applicable to the Services.

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16.7 This clause will survive termination of this Agreement.

17 INSURANCE

17.1 The Service Provider must effect and maintain all insurance policies set out in clause 17.2, and must ensure its subcontractors effect and/or maintain the same insurance cover, from insurers with a financial security rating of "A-" or better by Standard & Poors (or the equivalent rating with another recognised rating agency), or an insurer approved by the [REDACTED] acting reasonably ("**Insurance Policies**").

17.2 Unless otherwise indicated in the Work Order, the Service Providers must effect and maintain the following insurance policies:

- (a) Adequate Public Liability insurance for each and every claim which covers loss of, or damage to, or loss of use of any real or personal property and/or any personal injury to, illness or death or any person arising from the performance of the Service;
- (b) Motor Vehicle third party property damage insurance;
- (c) lawful and adequate Workers' Compensation insurance which:
 - (i) fully insures the Service Provider for any amount it becomes liable to pay under any statute relating to workers' or accident compensation or for employer's liability at common law;
 - (ii) is effected in the Partner Country as well as every state or territory in Australia where its Personnel normally reside or in which their contract of employment was made;
- (d) adequate property insurance covering any material created under this Agreement, supplies and the reinstatement of data while in the care, custody or control of the Service Provider for its full replacement value;
- (e) adequate Professional Indemnity insurance to cover the Service Provider's obligations under this Agreement. The Service Provider must maintain the necessary insurance for the term of this Agreement and until the expiration of 3 years after the end of the Term;
- (f) where Personnel are engaged outside their country of permanent residence, adequate travel insurance to cover incidents requiring medical attention, medical evacuation or evacuation resulting from an insured event for all its Personnel.

17.3 If the Service Provider fails to effect and maintain the policies listed in clause 17.2, without limiting the rights of [REDACTED] the Service Provider agrees to indemnify and reimburse [REDACTED] for its related costs, expenses and losses which may be suffered or incurred.

17.4 The Insurance Policies must be in the name of the Service Provider and must be adequate to cover the Service Provider for its respective rights, interests and liabilities including any right, interest and liability arising out of or in connection with any subcontracted Services.

17.5 The Insurance Policies may only be cancelled or changed if:

- (a) the cancellation or change will not constitute a breach of this Agreement; and

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- (b) the Service Provider has provided at least 14 days' prior written notice to [REDACTED]
- 17.6 The obtaining of any insurance by the Service Provider in accordance with this clause 17 does not in any way reduce, limit or otherwise affect any obligations, liabilities or warranties of the Service Provider under any other provision of this Agreement or otherwise at Law.
- 17.7 The Service Provider must pay all premiums and all deductibles applicable to the Insurance Policies when due and promptly reinstate any insurance required under this clause 17 if it lapses or if cover is exhausted.
- 17.8 Unless [REDACTED] otherwise agrees expressly in writing, the Service Provider must ensure that its Public and/or Professional Liability insurance contains an indemnity extension to cover the vicarious liability of [REDACTED] for acts or omissions of the Service Provider.
- 17.9 Unless [REDACTED] otherwise agrees expressly in writing, the Service Provider must effect and/or maintain the Insurance Policies referred to in this clause 17 on or before the date of execution of this Agreement until, subject to clause 17.10, the end of the Term.
- 17.10 If professional indemnity insurance is specified in schedule 2 as required, that insurance must be maintained without interruption for a period of 3 years after the end of the Term.
- 17.11 Before the date of execution of this Agreement, and within 14 days of request by [REDACTED] [REDACTED] the Service Provider must give to [REDACTED] [REDACTED] certificates of insurance and such other proof of compliance with the provisions of this clause 17 as [REDACTED] may reasonably require.
- 17.12 The Service Provider must comply with the terms of the Insurance Policies, and the Service Provider must not do or omit to do any act that would be grounds for an insurer to refuse to pay a claim made under any of the Insurance Policies.
- 17.13 If the Service Provider fails to comply with this clause 17, [REDACTED] [REDACTED] may (in addition to any other rights [REDACTED] may have) at its sole discretion and at the Service Provider's sole cost delay the commencement of the Services, suspend the performance of the Services, deny access to any relevant site and/or refuse any payment in respect of the Services, until such time as the Service Provider has fully complied with this clause 17.
- 17.14 The Insurance Policies are primary and not secondary to the indemnities in this Agreement. The parties acknowledge and agree that if a claim is made under an Insurance Policy, it is their intention that the insurer cannot require [REDACTED] to exhaust any indemnities referred to in this Agreement before the insurer considers or meets the relevant claim.
- 17.15 [REDACTED] in specifying levels of insurance in this Agreement, accepts no liability for the completeness of their listing, the adequacy of the sum insured, limit of liability, scope of coverage, conditions or exclusions of those insurances in respect of how they may or may not respond to any loss, damage or liability.
- 17.16 The Service Provider acknowledges and agrees that it is the Service Provider's responsibility to assess and consider the risks and scope of insurances required under this Agreement.

- 17.17 The Service Provider acknowledges that regardless of whether the Insurance Policies respond or not and why, the Service Provider is not released (in whole or in part) from any of the indemnities referred to in this Agreement, or generally.

18 FORCE MAJEURE

- 18.1 **“Force Majeure Event”** is limited to the following specific events or circumstances: earthquake, landslide, fire, explosion, war, invasion, act of foreign enemies, hostilities, civil war, rebellion, revolution, insurrection, military or usurped power, martial law or confiscation by order of any government or authority, ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, riot, civil disturbance, blockade or acts of terrorism, pandemic or epidemic which prevents a Party (**“the Affected Party”**) from complying with any of its obligations under this Agreement and which that the Affected Party:
- (a) did not cause or contribute to (by breach of this Agreement or otherwise);
 - (b) cannot reasonably control or influence; and
 - (c) where the Affected Party is the Service Provider, cannot be prevented or avoided or overcome, through prudent management processes, policies and precautions, including the use of alternative resources, the procuring of services from another source and work around plans.
- 18.2 If either party is prevented from performing any obligations under this Agreement by a Force Majeure Event, then provided that the Affected Party has complied with clause 19.3 such obligations will be suspended, and the Affected Party will have no liability to the other party for failure to perform them, to the extent their performance is prevented by the Force Majeure Event.
- 18.3 The Affected Party must:
- (a) notify the other Party immediately if a Force Majeure Event is preventing it, or is likely to prevent it, from complying with any of its obligations as soon as it becomes aware of the Force Majeure Event and provide full details of the Force Majeure Event including:
 - (1) the obligations affected;
 - (2) the nature, extent and likely duration of the effect on those obligations; and
 - (3) the actions taken or proposed to be taken by the Affected Party to remedy, abate, mitigate or minimise the effects of the Force Majeure Event;
 - (b) use all reasonable diligence and means to remedy, abate, mitigate or minimise the effect of the Force Majeure Event;
 - (c) notify the other party in writing when resumption of performance can occur; and
 - (d) promptly resume performance (and give notice of such resumption) as soon as reasonably possible.
- 18.4 The Affected Party must bear its own costs incurred in connection with a Force Majeure Event and the other Party is not liable for (and the Affected Party may not make) any claim or demand relating to a Force Majeure Event.

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19 TERMINATION

- 19.1 At any time after a Default Event occurs [REDACTED] may terminate this Agreement or a Work Order with immediate effect by giving notice in writing to the Service Provider.
- 19.2 A Default Event will be taken to have occurred if any of the following events occurs:
- (a) the Service Provider fails to start providing the Services on the Service Commencement Date;
 - (b) the Service Provider fails to proceed at a rate likely to achieve completion of the Services within the Time for Performance;
 - (c) the Service Provider fails to complete the Services by the end of the Time for Performance as set out in a Work Order;
 - (d) the Service Provider ceases to provide the Services at any time during the Term (if any) specified in this Agreement;
 - (e) repeatedly fails to perform or comply with its obligations under this Agreement or a Work Order whether those obligations are minor or significant;
 - (f) does something or fails to do something that, in the [REDACTED] opinion, results in damage to the Customer's reputation or business, or the reputation or business of the Crown;
 - (g) if the Service Provider assigns any of its rights, or purports to transfer any of its rights or obligations, under this Agreement or a Work Order in breach of clause 40;
 - (h) has a Conflict of Interest that in [REDACTED] opinion is so material as to impact adversely on the provision of the Services, the [REDACTED] the Customer, or the Crown;
 - (i) provides information to [REDACTED] or the Customer that is intentionally misleading or inaccurate in any material respect
 - (j) The Service Provider is unable to undertake a security check required under clause 23.6;
 - (k) the Service Provider fails to:
 - (i) provide and pay for appropriate insurance as required by clause 18; or
 - (ii) provide [REDACTED] with proof of appropriate insurance upon request by [REDACTED] as required by clause 17;
 - (l) the Service Provider breaches any other material provision of this Agreement (including these Conditions) and fails to remedy the breach within 30 days after receiving written notice requiring that to be done;
 - (m) any step is taken to enter into any arrangement between the Service Provider and the Service Provider's creditors;
 - (n) the Service Provider ceases to be able to pay the Service Provider's debts as they become due;

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- (o) the Service Provider ceases to carry on business;
- (p) the Service Provider fails to comply with its obligations and the requirements set out in clauses 28 to 37; or
- (q) any step is taken to appoint a receiver, a receiver and manager, a trustee in bankruptcy, a liquidator, a provisional liquidator or other like person of the whole or any part of the Service Provider's assets or business.
- (a) Where, before termination of this Agreement under this clause 19, [REDACTED] [REDACTED] has made payment to the Service Provider in advance of performance and completion of the Services but some or all of the Services were not performed or completed,

the Service Provider must on or before termination repay that amount to [REDACTED] [REDACTED] If not so re-paid, the amount is recoverable by [REDACTED] [REDACTED] from the Service Provider as a debt.

19.3 If this Agreement is terminated under this clause 19:

- (a) the Parties are relieved from future performance without prejudice to any right of action that has accrued at the date of termination;
- (b) rights to recover damages are not affected; and
- (c) the Service Provider indemnifies [REDACTED] in respect of any additional cost [REDACTED] may incur in purchasing similar services from alternative suppliers.

20 TERMINATION FOR CONVENIENCE

20.1 The Service Provider may terminate this Agreement by giving Notice to [REDACTED] [REDACTED] that:

- (a) an invoice rendered in accordance with clause 13 has not been paid within the period specified in clause 13.5 and
- (b) the amount outstanding be paid within 30 days of the date that such Notice is received by [REDACTED]

and if the amount outstanding is not paid to the Service Provider within the period referred to in clause 21.1(b), the Service Provider may by Notice immediately terminate this Agreement. In the case of any other breach of this Agreement by [REDACTED] the Service Provider may only terminate this Agreement by giving 90 calendar days notice.

20.2 The Service Provider acknowledges that, the Customer may terminate Head Contract, in whole or in part:

- (a) at any time, for any reason, by giving not less than 20 Business Days notice;
- (b) immediately by giving notice to [REDACTED] if the termination is due to a decision, direction or requirement (whether formal or informal) of the Host; or
- (c) immediately by giving notice to [REDACTED] if the termination is due to political changes (outside New Zealand) which might adversely

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affect the programme, activity or project to which this Agreement relates or the provision or delivery of the Services.

- 20.3 The Parties acknowledge and agree that such a determination by the Customer may be made in the absence of a breach of this Agreement by the Service Provider and due to circumstances beyond the Service Provider's and [REDACTED] control.
- 20.4 Without limiting [REDACTED] rights under this Agreement, at law or in equity, [REDACTED] may, at its absolute discretion, terminate a Work Order and/or this Agreement immediately on notice or reduce the scope of this Agreement and/or a Work Order.
- 20.5 If [REDACTED] terminates this Agreement and/or a Work Order under clause 20.4, [REDACTED] will only be liable to the Service Provider for the following loss or damage incurred as a direct consequence of termination of this Agreement to the extent that they can be reasonably substantiated and are unable to be avoided or mitigated:
- (a) fees and any reimbursable costs, as payable under a Work Order for Services provided before the effective date of termination (on a pro-rata basis, if applicable); and
 - (b) excluding all other loss or damage, including the cost of redundancies, the costs of terminating any subcontracts, loss of profits and all other forms of expectation loss.
- 20.6 [REDACTED] is not obliged to make any further payments to the Service Provider (whether under this Agreement, at law or in equity) if [REDACTED] exercises its rights in clause 20.4 except as expressly provided under this clause 20.

21 HANDING OVER ON TERMINATION OR EXPIRY OF THIS AGREEMENT

- 21.1 The Service Provider will provide all reasonable assistance and cooperation necessary to facilitate a smooth handover to the [REDACTED] or any person appointed by the [REDACTED] during the Term of this Agreement and for a period of 10 Business Days after the Completion Date.
- 21.2 If required by [REDACTED] the Service Provider will provide additional assistance to support any replacement supplier to deliver the Services. This support may be for a period of up to 3 months from the date of termination and at a reasonable fee to be agreed between the Parties, based on the Prices.

22 CONFIDENTIALITY

- 22.1 Subject to clauses 22.2, 22.4, 22.5 and any Law requiring the disclosing of information or documents, the Parties agree all information obtained in connection with or incidental to the Services, including Confidential Information, are confidential as between the Parties and neither Party will, without the prior written consent of the other, disclose any of the Confidential Material to any third Party.
- 22.2 Neither Party, nor their Personnel may disclose, use or make public the Confidential Information of the other Party (or Confidential Information disclosed by or on behalf of the

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other) other unless required by a Law, necessary for legal proceedings, provided with the written consent of the relevant Party, or required to manage this Agreement. If the Confidential Information is required to be disclosed under this clause 22.2, a Party must use all reasonable endeavours to ensure that persons receiving the Confidential Information do not further disclose the information.

- 22.3 If a Party is required to disclose Confidential Information by a Law or for legal proceedings, the disclosing Party must provide reasonable notice to the other Party.
- 22.4 In this clause 22.4, 'document' and 'Commonwealth contract' have the same meaning as in the *Freedom of Information Act 1982* (Cth):
- (a) the Service Provider acknowledges that this contract is a Commonwealth contract;
 - (b) where the Customer and/or [REDACTED] has received a request for access to a document created by, or in the possession of, the Service Provider or any contractor engaged by the Service Provider that relates to performance of this Agreement, [REDACTED] may at any time by written notice require the Service Provider to provide the document to [REDACTED] and the Service Provider must, at no additional cost, promptly comply with the notice;
 - (c) the Service Provider must include in any subcontract relating to the performance of this Agreement, provisions that will enable the Service Provider to comply with its obligations under this clause.
- 22.5 The Service Provider authorises the Customer to publish details of the name of Service Provider and the nature of the Services that the Service Provider is subcontracted to perform.

Security Checking

- 22.6 If, and whenever the [REDACTED] so requests the Service Provider agrees to submit its Personnel to a formal security check (check), and will procure that its Subcontractors submit their personnel engaged in relation to this Agreement or the delivery of the Services to a check. Whenever requested by the [REDACTED] the Service Provider must promptly:
- (a) obtain consent to the check from the individual(s) concerned on a fully informed basis;
 - (b) subsequently provide the Buyer with authorisation to make and complete the checks; and
 - (c) complete, authorise and return the relevant official forms, including any New Zealand Ministry of Justice forms.
- 22.7 If for any reason, the Service Provider fails to do or achieve any of the things referred to in clause 22.6(a), (b), or (c) above:
- (a) that will not be an Force Majeure Event under clause 18.1, frustrating event or otherwise excuse the Service Provider of its obligations to provide or perform the Services;
 - (b) the Service Provider must provide or perform the Services using Personnel and Subcontractors whose personnel have agreed to, and passed, the check;

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- (c) the Service Provider will cease to engage or use Personnel and Subcontractors whose personnel have not agreed to, and passed, the check in any way in connection with the provision or performance of the Services;
- (d) the Buyer will be entitled, but not obliged, to terminate this Agreement as an irremediable breach under clause 19.2(j).

23 GOVERNING LAW AND JURISDICTION

- 23.1 Unless otherwise expressly provided, this Agreement (and any transactions contemplated under this Agreement) are to be governed by and construed and interpreted in accordance with the laws of South Australia.
- 23.2 Each Party to this Agreement unconditionally submits to the exclusive jurisdiction of the courts of South Australia.

24 PRIVACY

- 24.1 The Service Provider is a “Contracted Service Provider” within the meaning of the *Privacy Act 1988* (Cth) and, to the extent that it deals with personal information in the provision of Services, agrees to:
 - (b) comply with the Australian Privacy Principles as they apply to [REDACTED] including:
 - (i) to use or disclose personal information only for the purposes of this Agreement;
 - (ii) take necessary steps to ensure adequate security measures are in place to protect personal information from misuse, interference and loss and from unauthorised access, modification or disclosure;
 - (iii) comply with the requirements of Australian Privacy Principle 8 regarding the disclosure of personal information to an overseas recipient;
 - (c) not do any act, or engage in any practice that would, if done in or engaged in by [REDACTED] breach the Australian Privacy Principles;
 - (d) comply with any reasonable request or direction of [REDACTED] or the Privacy Commissioner in relation to access to, or handling of, personal information;
 - (e) immediately notify [REDACTED] if it becomes aware of a breach or possible breach of any obligations referred to in this Clause, or the initiation of any action by the Privacy Commissioner relevant to this Agreement; and
 - (f) investigate any complaint arising out of a breach or possible breach of any obligations referred to in this clause and notify [REDACTED] of that investigation and outcome.
- 24.2 The Service Provider agrees to indemnify [REDACTED] in respect of any loss, liability or expense suffered or incurred by [REDACTED] which arises directly from a breach by the Service Provider of any obligations referred to in this clause.

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25 TAXES

- 25.1 Unless otherwise indicated, the amount payable under this Agreement for each supply of Services under this Agreement is the value of that supply plus the value of the applicable Services Tax. Payment by [REDACTED] to the Service Provider of the Services Tax is subject to the Service Provider providing [REDACTED] with a valid tax invoice issued in accordance with the relevant provisions of the applicable Services Tax, Taxation Laws and associated Laws.
- 25.2 The total amount of the Services Tax payable by the Service Provider and for which the Service Provider seeks payment from [REDACTED] must be shown as a separate item on the Service Provider's tax invoice.
- 25.3 If the Services Tax payable for any taxable supply under this Agreement varies from the additional amount payable under clause 25.1 as a result of an adjustment event, any additional Services Tax must be paid by the Service Provider, or any credit of Services Tax must be refunded by the Service Provider, upon receipt of an adjustment note.
- 25.4 Where Tetra Tech is required to reimburse or indemnify the Service Provider under this Agreement, the Service Provider shall take into account any input tax credit to which it is entitled before increasing the amount of the reimbursement or indemnity on account of Services Tax under this clause.
- 25.5 Subject to clause 25.1 and to the extent permitted by Laws, the Service Provider must pay all Taxes in connection with this Agreement and indemnifies and holds harmless [REDACTED] against any such Taxes.
- 25.6 If [REDACTED] is required to make a Withholding Payment from any amount payable to the Service Provider, the [REDACTED] will pay the Service Provider the balance of the amount payable after deduction of the Withholding Payment.
- 25.7 [REDACTED] acknowledges that the Service Provider is awaiting specialist advice relating to the Tax provisions in this Agreement to ensure compliance with New Zealand taxation law. The parties agree to reconvene in good faith to address and resolve any matters relating to Tax arising from this specialist advice and will make any necessary amendments to this Agreement. Where the Parties are unable to agree such amendments, then the Service Provider may terminate this Agreement immediately. Notwithstanding any other provision in this Agreement, this clause 25.7 shall prevail in the event of any inconsistency or conflict with any other clause relating to Tax.

26 DISPUTE RESOLUTION

- 26.1 If a dispute arises under this Agreement, prior to commencing any arbitration or court proceedings (other than for interlocutory relief or where an authority of the Commonwealth of Australia, or the authority of a State or Territory of Australia is investigating a breach or suspected breach of a Law by the Service Provider, or [REDACTED] is exercising a right to terminate) the Parties must act in good faith and use their reasonable endeavours to resolve the dispute as follows:
- (a) the Party claiming that there is a dispute must give the other a written notice in accordance with clause 27 setting out the nature of the dispute;

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- (b) within 10 Business Days following notice, attempt to resolve the dispute through direct negotiation between the Service Provider Representative and [REDACTED] Representative;
 - (c) if still unresolved, refer the dispute to each Party's Escalation Representatives, who must in good faith work to resolve the dispute within a further 10 Business Days or any other agreed period;
 - (d) if still unresolved, the Parties have 30 Business Days from the receipt of the notice to reach a resolution or to agree that the dispute is to be submitted to mediation or conciliation rather than litigation or arbitration; and
 - (e) if the dispute is not resolved in that time or there is no agreement to, or submission of the dispute to mediation or conciliation within a further 30 Business Days, then either Party may commence legal proceedings.
- 26.2 The Escalation Representative may delegate all or some of his or her powers in relation to resolving the dispute and, notwithstanding anything in this clause 26, the Escalation Representative of either Party may be substituted and replaced with reasonable written notice delivered to the other Party.
- 26.3 Notwithstanding any existing dispute between the Parties, or that legal proceedings are pending or current, and subject to clause 13, each Party and its Personnel must continue to comply with their obligations under this Agreement.

27 NOTICES

- 27.1 A notice under this Agreement is only effective if it is in writing, and dealt with as follows:
- (a) *if given by the Service Provider to* [REDACTED] - addressed to [REDACTED] Representative at the address specified in Schedule 2; or
 - (b) *if given by* [REDACTED] *to the Service Provider-* given by [REDACTED] Representative (or any [REDACTED] employee with superior authority to the [REDACTED] Representative) and addressed (and marked for attention) as specified in Schedule 2 or as otherwise notified by the Service Provider.
- 27.2 A notice is to be:
- (a) signed by the person giving the notice and delivered by hand;
 - (b) signed by the person giving the notice and sent by pre-paid post; or
 - (c) transmitted electronically by the person giving the notice by electronic mail.

When effective

- 27.3 A notice is deemed to be effected:
- (a) *if delivered by hand* – upon delivery to the relevant address;
 - (b) *if sent by post* – upon delivery to the relevant address; and
 - (c) *if transmitted electronically-* upon actual receipt by the addressee.

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- 27.4 A notice received after 5.00PM, or on a day after that is not a Business Day in the place of receipt, is deemed to be effective on the next Business Day in that place.

28 CONFLICTS OF INTEREST

Managing Conflicts of Interest

- 28.1 The Service Provider warrants that at the Commencement Date:
- (a) it has no no Conflict of Interest in providing the Services or entering into this Agreement; or
 - (b) a Conflict of Interest has been declared and the Parties have discussed, agreed and recorded in writing how it will be managed (provided the Conflict of Interest is one that can be managed).
- 28.2 The Service Provider must do its best to avoid situations that may lead to a Conflict of Interest arising.

Obligation to tell [REDACTED]

- 28.3 The Service Provider must tell the [REDACTED] promptly, and in writing, if any Conflict of Interest arises in relation to the Services this Agreement or a Work Order. If a Conflict of Interest does arise the Parties must discuss, agree and record in writing whether it can be managed and, if so, how it will be managed. Each Party must pay its own costs in relation to managing a Conflict of Interest.

29 CHILD PROTECTION

- 29.1 The Service Provider must develop and implement a policy that governs the protection and safeguarding of children and young persons ('Child Protection Policy') that includes the requirements set out in clause 29.2, to the extent relevant to the Services the Service Provider is to be engaged to perform.
- 29.2 The Child Protection Policy must apply to all members of the Service Provider's governing body (where applicable), its Personnel and volunteers engaged by the Service Provider, and commit the Service Provider to:
- (a) effective leadership to enable the safeguarding of children;
 - (b) communicate the Child Protection Policy and expected practices to all members of the Governing body, staff and volunteers;
 - (c) include provisions within its employment contracts and agreements with Subcontractors that prevent (or empower the Service Provider to prevent) a person from working with children if they present an unacceptable risk to children;
 - (d) take appropriate disciplinary action to dismiss, suspend or transfer to other duties, any employee who breaches the Child Protection Policy;
 - (e) implement recruitment screening processes for all personnel that will, or are reasonably likely to, have contact with children when performing their role, with such screening processes including:
 - (i) criminal record checks before engagement or where such checks are not available or unreliable, a legal declaration made by the relevant individual

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confirming that there are no convictions or charges pending for offences relevant to the safety of children, including violent or sexual offending against a child; serious or aggravated animal cruelty; recording images of or filming a child; intentional harmful conduct including poisoning and arson; and

- (ii) verbal referee checks,
 - (f) implement measures to prevent inappropriate, use of images and personal information of children from promotion, fundraising or education and which ensure the privacy and safeguarding of children; and
 - (g) regularly review the Child Protection Policy.
- 29.3 The Service Provider will ensure that its agreements with all Personnel impose an obligation on its Personnel to:
- (a) develop and implement a policy for the protection and safeguarding of children, the content of which is to be the same in all material respects as set out above in clause 29.2; or
 - (b) adopt and apply the Service Provider's Child Protection Policy,

to the extent relevant to the Services the Personnel are to be engaged to perform.

30 PREVENTING SEXUAL EXPLOITATION, ABUSE AND HARASSMENT

- 30.1 The Customer's PSEAH Policy (), accessible at (), applies to all Services undertaken by the Service Provider, its Personnel and its Subcontractors. The Service Provider must ensure that its Personnel and Subcontractors comply with the PSEAH Policy.
- 30.2 () or the Customer may from time to time conduct a review of the Service Provider's compliance with the () Policy. The Service Provider must participate cooperatively in any such review.
- 30.3 The Service Provider must report any alleged incident of sexual exploitation, sexual abuse, sexual harassment (as those terms are defined in the ()) or non-compliance with the () Policy itself to () within the timeframes as specified in the () Policy.
- 30.4 The Service Provider must develop and implement a written policy and procedure that sets out how the Contractor will work to prevent sexual exploitation, abuse and harassment ('Service Provider PSEAH Policy') that includes the requirements set out in clauses 30.1 to 31.3, to the extent relevant to the services the Service Provider is engaged to perform.
- 30.5 The Service Provider PSEAH Policy must:
- (a) set out procedures for reporting and investigating allegations of sexual exploitation, abuse and harassment ('SEAH'), managing risks of SEAH and communicating the expectations of the Service Provider PSEAH Policy to all of the Contractor's Personnel; and
 - (b) include the principles, minimum standards and reporting requirements that are materially the same as those set out in the () Policy.

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- 30.6 The Service Provider will ensure that its agreements with all Personnel impose an obligation on its Personnel to:
- (a) develop and implement a policy and procedures for the prevention of SEAH, the content of which is to be the same in all material respects as set out above in clause 30.5; or
 - (b) adopt and apply the Service Provider's PSEAH Policy,
- to the extent relevant to the Services, or any other services the Personnel is engaged to perform.

31 COUNTER-TERRORISM

- 31.1 The Service Provider must ensure that funds provided under this Agreement (whether through a subcontract or not) do not provide direct or indirect support or resources to:
- (a) organisations and/or individuals associated with terrorism, or
 - (b) organisations and individuals for whom Australia has imposed sanctions under:
 - (i) the Charter of the *United Nations Act 1945* (Cth) and regulations made under that Act;
 - (ii) the *Autonomous Sanctions Act 2011* (Cth) and regulations made under that Act; or
 - (iii) the World Bank List or a Relevant List.

32 MODERN SLAVERY

- 32.1 The Service Provider warrants and agrees that:
- (a) it has not engaged, and will not engage, in any Modern Slavery practices;
 - (b) it complies with and will continue to comply with Modern Slavery Laws;
 - (c) it has investigated the risk of Modern Slavery within its operations, and those of its supply chain;
 - (d) it assesses and addresses risks regarding Modern Slavery, including implementing appropriate due diligence and, where required, remediation programs to prevent Modern Slavery practices;
 - (e) it will ensure that no recruitment fees or related costs are charged to, or otherwise borne by, any worker it engages, including any entities it engages where such entities are individuals;
 - (f) it will not destroy or exclusively possess (without informed consent), whether permanent or otherwise, the travel or identity documents of its directors, officers, employees or engaged entities, where such entities are individuals;
 - (g) it will, as soon as possible, notify [REDACTED] in writing of any confirmed instances of Modern Slavery arising directly or indirectly in connection with this Agreement or the Services and the actions undertaken by it to remedy the issue;
 - (h) it has all the necessary processes, procedures, investigations and compliance systems in place to undertake the actions in clauses 32.1(a) to (g);

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- (i) it will include provisions equivalent to those in clauses 32.1(a) to (h) in its contracts with its subcontractors, to the extent relevant to the services to be performed by the subcontractor.
- 32.2 The Service Provider must comply (and ensure that its subcontractors comply) with any requests made by [REDACTED] to provide any assistance, information, documents or interview any person as required by [REDACTED] to enable [REDACTED] to discharge any obligations arising under the Modern Slavery Laws.
- 32.3 The Service Provider indemnifies [REDACTED] against all actions, claims, demands and proceedings against [REDACTED] and all losses, damages, costs, expenses and other liabilities suffered or incurred by [REDACTED] arising from any failure by the Service Provider to comply with its obligations under this clause 32.

33 FRAUD AND ANTI – CORRUPTION

No Fraudulent Practice

- 33.1 Both Parties warrant that they will not make, cause to be made, nor receive any offer, gift (over the value of NZD100), payment, consideration, inducement, reward or benefit of any kind which would, or could, be construed as an illegal, unethical, or Fraudulent Practice. Any such conduct may be grounds for immediate termination of this Contract and the other Party will be entitled to recover any such amounts and take such other corrective action as the other Party deems appropriate.
- 33.2 Where either Party, or a Party's Personnel, is investigated for Fraud, or where there is a finding of Fraud against either Party or a Party's Personnel, or where a Party's Personnel is convicted of a serious criminal offence that brings that Party, or [REDACTED] of the Customer into disrepute, or the nature of the conviction is incompatible with the objective(s) of this Agreement and Services, this event will be grounds for the other Party to immediately terminate this Agreement by giving Notice in writing to the other Party.

Notification and Investigation

- 33.3 The Service Provider must immediately provide a written report to the [REDACTED] within five Business Days all suspected or detected Fraud and consult [REDACTED] before the matter is referred to police. The written report to [REDACTED] must be signed by a Service Provider authorised person and must include the following (where known):
- (a) name of any Personnel (including any subcontractors) involved;
 - (b) the allegation(s), including a chronological account of the facts giving rise to the allegation(s);
 - (c) the names of the suspected offender(s) (where known);
 - (d) details of witnesses;
 - (e) copies of relevant documents;
 - (f) references to any relevant legislation;

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- (g) a nominated contact officer;
- (h) any other relevant information (e.g., political sensitivities, any other Party or agency that has been informed, involved or that can assist with investigations); and
- (i) the current status of any inquiries commenced by the Service Provider.

33.4 [REDACTED] reserves the right to investigate cases of suspected or detected Fraud.

33.5 The Service Provider must use its best endeavours to ensure that payments made under this Agreement (including a Work Order) do not provide direct or indirect support or resources to organisations and/or individuals associated with terrorism. Certain organisations and/or individuals listed on the New Zealand Police website are designated by New Zealand as terrorists [REDACTED]. If the Service Provider discovers any link whatsoever with any organisation or individual associated with terrorism it must inform the Buyer immediately.

33.6 The Service Provider must use its best endeavours to ensure that payments made under this Agreement (including Work Orders) do not provide direct or indirect support or resources to organisations and/or individuals which or who are subject to sanctions under any New Zealand legislation which imposes or authorises the imposition of any sanction other than the *Terrorism Suppression Act 2002*

33.7 Any breach of this clause 33 will entitle [REDACTED] to issue a notice under clause 19.2 to terminate this Agreement immediately.

33.8 This clause 33 survives termination or expiration of this Agreement.

34 WORK HEALTH AND SAFETY

34.1 In carrying out the Services the Service Provider must:

- (a) comply, and ensure that any subcontractor, subconsultant comply, with all WHS Legislation, codes of practice, standards and policies and other requirements of this Agreement in respect of work health and safety;
- (b) ensure so far as is reasonably practicable, the health and safety of:
 - (i) workers who work for the Service Provider, while the workers are performing work under this Agreement or a Work Order;
 - (ii) workers whose activities are influenced or directed by the Service Provider while performing work under this Agreement or a Work Order
 - (iii) other persons who might be put at risk by the Service Provider performing work under this Agreement or a Work Order.
- (c) consult, cooperate and coordinate with [REDACTED] regarding the Parties' overlapping obligations under, and what is required from the Service provider to assist [REDACTED] to comply with, WHS Legislation (including the HSW Act) as it relates to, or affects, this Agreement or a Work Order.

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- (d) comply with all reasonable Directions of the [REDACTED] relating to health, safety and security;
- (e) comply with its duty under the WHS Legislation to consult with workers who carry out work for the Service Provider (or are likely to be) directly affected by a work health and safety matter;
- (f) comply with its duty under the WHS Legislation to consult, cooperate and coordinate activities with all other persons who have a work health and safety duty in relation to the same matter;
- (g) comply, and ensure that its Personnel comply, with their obligations under the HSW Act as it relates to, or affects, this Agreement or a Work Order and comply with the provisions of any Health and Safety Acknowledgement Form and Safety Plan provided to the [REDACTED]
- (h) allow [REDACTED] or its agents to review, inspect, audit or otherwise observe the Service Provider's health and safety systems, work practices and procedures related to the Services at any time, at the Service Provider's cost, without [REDACTED] incurring any liability or responsibility for such matters; and
- (i) report any of the following that applies to the Service Provider or [REDACTED] or relates to or affects this Agreement, the Services, or a Work Order:
 - (i) a notifiable injury, illness, incident or event, or any notice issued under the HSW Act or any health and safety legislation; and
 - (ii) a Protective Security Incident.

For the purposes of this clause 34.1:

- (j) **workers** means an individual who carries out work (whether in or out of New Zealand) in any capacity, including employees, contractors, subcontractors, apprentices and volunteers; and
- (k) **reasonably practicable** means that which is, or was, at a particular time, reasonably able to be done in relation to ensuring health and safety, taking into account and weighing up all relevant matters, including —
 - (i) the likelihood of the hazard or the risk concerned occurring; and
 - (ii) the degree of harm that might result from the hazard or risk; and
 - (iii) what the person concerned knows, or ought reasonably to know, about the hazard or risk and ways of eliminating or minimising the risk; and
 - (iv) the availability and suitability of ways to eliminate or minimise the risk; and
 - (v) after assessing the extent of the risk and the available ways of eliminating or minimising the risk, the cost associated with available ways of eliminating or minimising the risk, including whether the cost is grossly disproportionate to the risk.

34.2 If, when and while the Service Provider is at the Host's premises, the Service Provider must observe the Host's policies and procedures (a Host policy), including those relating to health

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and safety, and security requirements insofar as they, or any of them are applicable to the Service Provider or an individual of a kind described in clause 34.1(b) in the context of the delivery of the Services. The Service Provider must use all reasonable endeavours to inform itself (and such worker) of and about such policies, procedures and requirements.

- 34.3 If there is a conflict between a Host policy and an act, matter or thing that is required to be done by the Service Provider by or under clause 34.1 (the H&S requirement) then (except only to the extent that compliance with the Host policy is required by mandatory law) the H&S requirement will prevail. If there is doubt, in a particular case, whether the Host policy or the H&S requirement applies then:
- (a) the Service Provider must comply with the H&S requirement; and
 - (b) if, and to the extent, doing so is not inconsistent with (a) above the Service Provider must also comply with the Host policy.

35 SECURITY AND CYBER SECURITY

- 35.1 The Service Provider is responsible for the security of Personnel and must ensure that both the Service Provider and its Personnel comply with this clause 35.
- 35.2 In performing its obligations and exercising its rights under this Agreement, the Service Provider warrants and represents that it will:
- (a) maintain adequate and effective administrative, technical and physical measures, controls, tools, systems, policies and procedures in accordance with good cyber security industry practice; and
 - (b) comply with any Direction from [REDACTED] regarding cyber security practices that relate to the Services, including relevant requirements of the Special Conditions (if any).
- 35.3 The Service Provider must take reasonable and prudent steps consistent with good industry practice to reduce the risk of a Security Incident or Cyber Attack on the Service Provider's information technology systems that accesses, transmits or stores any Confidential Information or any other Data/Records connected with this Contract, including but not limited to, Contract Material, or Personal Information.
- 35.4 At [REDACTED] request in a notice, the Service Provider must provide details of the Service Provider's security measures in place to reduce the risk of a Security Incident or Cyber Attack on the Service Provider's information technology systems.
- 35.5 If the Service Provider becomes aware of a Security Incident or Cyber Attack on the Service Provider's information technology systems, the Service Provider must immediately notify:
- (a) [REDACTED] (and, if this notification is not done by notice, by notice within one (1) Business Day); and
 - (b) if required by [REDACTED] advise the Australian Cyber Security Centre (ACSC) and/or other relevant body.
- 35.6 The Service Provider must:
- (a) notify [REDACTED] immediately on becoming aware of any security incident, Cyber Security Incident or security breach and comply with all [REDACTED]

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- ██████████ directions to rectify the security issue, which may include notifying the Australian Cyber Security Centre or any other relevant body; and
- (b) participate in security reviews of its procedures at least annually as requested by ██████████ and participate in any security audit in relation to the Contract, providing full co-operation to ██████████ or its independent auditors, including the Australian National Audit Office.

36 INFORMATION MANAGEMENT

Information and Records

- 36.1 The Service Provider must:
- (a) keep and maintain Records in accordance with prudent business practice and all applicable laws;
 - (b) make sure the Records clearly identify all relevant time and expenses incurred in providing the Services;
 - (c) make sure the Records are easy to access; and
 - (d) keep the Records safe.
- 36.2 The Service Provider must give information to ██████████ relating to the Services that ██████████ reasonably requests. All information provided by the Service Provider must be in a format that is usable by ██████████ and delivered within a reasonable time of the request.
- 36.3 The Service Provider must co-operate with ██████████ to provide information as quickly as possible if the information is required by ██████████ to comply with an enquiry or its statutory, parliamentary or other reporting obligations.
- 36.4 The Service Provider must make its Records available to ██████████ or a ██████████ designated party during the term of the Agreement and for a minimum of seven years after expiration of the Term (unless already provided to ██████████ earlier).
- 36.5 The Service Provider must make sure that Records provided by ██████████ or created for ██████████ are securely managed and where return is not required, securely destroyed on their disposal.

Reports

- 36.6 The Service Provider must prepare and provide to ██████████ the reports specified in a Work Order (if any). All reports must:
- (a) be provided by the due dates stated in the Work Order or as reasonable notified by ██████████ from time-to-time;
 - (b) be in a format required by ██████████ in a Work Order and include any other information reasonably requested by ██████████

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- (c) be presented in a manner that allows [REDACTED] to easily and properly to assess the Service Provider's progress under this Agreement and the applicable Work Order;
 - (d) not incorporate any logo, representation or mark of [REDACTED] or the International Development Cooperation programme which does, or may, indicate that the Service Provider is in any or some way related to, or connected with, [REDACTED] or the International Development Cooperation programme; and
 - (e) be in a form satisfactory to [REDACTED]
- 36.7 [REDACTED] may from time-to-time request, and the Service Provider must provide, informal reports, updates or consultations in relation to this Agreement, a Work Order, and/or the Services.

37 PUBLICITY AND PUBLICATION OF INFORMATION

- 37.1 The Service Provider may not make media or other announcements or releases relating to this Agreement without [REDACTED] prior written approval except to the extent that the announcement or release is required to be made by Law.
- 37.2 The Service Provider may disclose the existence of this Agreement but must obtain [REDACTED] prior written approval before making reference to:
- (a) the International Development Cooperation programme;
 - (b) [REDACTED] or the Customer's policies, procedures or processes;
 - (c) [REDACTED] the Customer or this Agreement in its publications, public statements, promotional material or promotional activities about this Agreement.
- 37.3 Each Party undertakes to not publicly make objectionable or derogatory comments about the Services, this Contract, the other Party, or any of its Personnel and to ensure that its Personnel do not do so.

38 NOVATION AND ASSIGNMENT

- 38.1 Under the Head Contract between the Customer and [REDACTED] the Customer may have the right of substitution to further novate this Agreement to another managing contractor. The Service Provider, by entering into this Agreement for the provision of the Services, acknowledges that this Agreement can be novated and it does not create any contractual relationship between the Customer and the Service Provider.
- 38.2 The Service Provider agrees that [REDACTED] may, without requiring any further agreement or consent from the Service Provider, at any time and at its sole and absolute discretion, assign or novate this Agreement (which includes Work Orders) or any right, benefit or interest in and under this Agreement to:
- (a) a [REDACTED] Related Body Corporate;
 - (b) the Client;
 - (c) a Sovereign Nation; or

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- (d) an entity that is, or is proposed to be, a contractor engaged by the Client or the Sovereign Nation.
- 38.3 For the purposes of giving effect to clause 38.2, the Service Provider irrevocably and unconditionally appoints [REDACTED] as its agent and attorney, and [REDACTED] accepts such appointment, to sign any document or documents for and on behalf of the Supplier that may reasonably be required to effect a novation of this Agreement, including without limitation a novation deed or agreement.
- 38.4 The Service Provider acknowledges and agrees that:
- (a) [REDACTED] may sign such a novation deed or agreement and any other documents required to give effect to a novation of this Agreement without seeking any further instructions or consent from the Service Provider;
 - (b) by entering into this Agreement, the Service Provider has acknowledged and accepted that [REDACTED] can assign or novate this Agreement in accordance with this clause 38 without the Service Provider's consent; and
 - (c) novation of this Agreement to a Sovereign Nation or an entity that is, or proposes to be, a contractor engaged by the Client or the Sovereign Nation, does not create any contractual relationship between the Service Provider and the Client or the Sovereign Nation.
- 38.5 The Service Provider must not assign, novate, pledge, or make any other disposition of this Agreement of any part of this Agreement or a Work Order, or any of the rights, claims, or obligations under this Agreement or a Work Order except with the prior written authorization of [REDACTED]. Any such unauthorized assignment, transfer, pledge or other disposition, or any attempt to do so, will not be binding on [REDACTED].

39 PERFORMANCE ASSESSMENT

- 39.1 The Service Provider acknowledges and agrees that the Customer may issue a Service Provider performance assessment in relation to this Agreement.
- 39.2 The Service Provider agrees that the Customer or [REDACTED] may issue:
- (a) a Service Provider performance assessment; or
 - (b) Service Provider key personnel performance assessments, in relation to the Agreement
- 39.3 The Service Provider will sign and return the Service Provider performance assessment together with any response within 15 days of receipt and will ensure that the Service Provider personnel performance assessments together with any response any personnel wishes to include are signed and returned within 15 days of receipt.

40 COMPLIANCE WITH CUSTOMER AND [REDACTED] REQUIREMENTS

- 40.1 The Service Provider and its Personnel must have regard to and comply with:

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- (a) the Special Conditions (if any); and
 - (b) relevant and applicable laws, guidelines, regulations and policies, including those in Australia and in the Partner Country.
- 40.2 The Service Provider must ensure that it and its Personnel comply with Code of Conduct and Client Service Standards set out in Schedule 4. The Service Provider will sign the Code of Conduct and Client Service Standards.
- 40.3 The Service Provider will acknowledge and sign the Additional Customer and [REDACTED] Requirements set out in Schedule 7.

41 NOTIFICATION TO [REDACTED]

- 41.1 The Service Provider must ensure it is not and must immediately notify [REDACTED] if the Service Provider, including its Personnel, is:
- (a) subject to a change in Control of its legal entity;
 - (b) on the World Bank List or a Relevant List;
 - (c) subject to any proceedings or informal process that could lead to listing on the World Bank List or a Relevant List;
 - (d) temporarily suspended from tendering for World Bank contracts by the World Bank, pending the outcome of a sanctions process;
 - (e) temporarily suspended from tendering by a donor of development funding other than the World Bank; and/or
 - (f) the subject of an investigation (whether formal or informal) by the World Bank or another donor of development funding.
- 41.2 The Service Provider must inform [REDACTED] immediately if the Service Provider becomes aware of any issue that may affect its performance of, or compliance, with this Agreement.
- 41.3 In this Agreement:
- (a) **“World Bank List”** means a list of organisations maintained by the World Bank in its “Listing of Ineligible Firms” or “Listings of Firms, Letters of Reprimand” posted at: <http://web.worldbank.org>;
 - (b) **“Relevant List”** any list similar to the World Bank List, including but not limited to:
 - (i) the lists of terrorist organisations made under Division 102 of the Criminal Code Act 1995 (Cth) and the Charter of the United Nations Act 1945 (Cth) posted at: <https://www.nationalsecurity.gov.au>;
 - (ii) the Asian Development Bank Sanctions List, posted at: lnadbg4.adb.org/oga0009p.nsf;
 - (iii) the New Zealand Police designated terrorist entities lists, [posted at https://www.police.govt.nz/advice/personal-community/counterterrorism/designated-entities](https://www.police.govt.nz/advice/personal-community/counterterrorism/designated-entities); and
 - (iv) the DFAT Consolidated List of sanctions, posted at: <https://www.dfat.gov.au/international-relations/security/sanctions/consolidated-list>

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42 ADDITIONAL CUSTOMER REQUIREMENTS

- 42.1 The Service Provider acknowledges and agrees that the requirements and obligations set out in Schedule 7 under “Additional Customer Requirements” (if any)
- 42.2 The Service Provider authorises the Customer to publish details of the name of Service Provider and the nature of the Services that the Service Provider is subcontracted to perform.

43 GENERAL PROVISIONS

Non-compete

- 43.1 During the term of this Agreement, the Service Provider must not seek to contract, or bid for, any work the subject matter of the Head Contract between [REDACTED] and the Client to which this Agreement pertains.

Further Assurance

- 43.2 Each Party must take all steps, execute all documents and do everything reasonably required by the other party to give effect to the transactions contemplated by this Agreement.

Waiver

- 43.3 A failure or delay by a party to exercise any right or remedy it holds under this Agreement does not operate as a waiver of that right.
- 43.4 A right under this Agreement may only be waived in writing by the party entitled to the right.

Amendments

- 43.5 Except to the extent expressly permitted by the terms of this Agreement, this Agreement may only be amended by another written agreement executed by authorized officers of both parties.

Survival of indemnities

- 43.6 Each indemnity in this Agreement is a continuing obligation, separate and independent from the other obligations of the Service Provider, and survives expiration or termination of this Agreement. It is not necessary for [REDACTED] to incur expense or make payment before enforcing a right of indemnity conferred by this Agreement.

Entire Agreement

- 43.7 This Agreement contains the entire agreement of the parties as to its subject matter.
- 43.8 Unless otherwise explicitly incorporated by reference, this Agreement superseded all previous proposals, verbal or written arrangements or agreements, and any other communications by one or both Parties relating to this Agreement.
- 43.9 This Agreement sets out the only representations and warranties relied upon by the Parties when entering into this Agreement.
- 43.10 The original of this Agreement has been written and signed in English. If this Agreement is translated into another language, the English version will govern and prevail.

Electronic Signature and Counterparts

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- 43.11 The Parties agree that this Agreement may be executed by electronic signature and that this method of signature is conclusive of the Parties' intention to be bound by this Agreement as if physical signing had occurred.
- 43.12 This Agreement and any amendment made pursuant to clause 43.5, will be validly executed if signed in any number of counterparts and the counterparts taken together will constitute one Agreement or amendment (as the case may be).

Survival of General Provisions

- 43.13 This clause 40 survives termination.

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